

23NWCV03581 23NWCV03581

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-08

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MOORE v. L'ABRI MANAGEMENT, INC., ET AL.

CASE NO.: 23NWCV03581

HEARING: 09/08/2026 @

9:30 AM

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TENTATIVE ORDER

Defendants L'Abri Management, Inc., Ronald A, Kolar, and Edgl Has's motion for terminating sanctions is GRANTED. This action is dismissed with prejudice.

Moving party to give notice.

Defendants L'Abri Management, Inc., Ronald A, Kolar, and Edgl Has (Defendants) move for an order issuing terminating sanctions in its favor and against Plaintiff Sedric Moore (Plaintiff).

Background

On November 6, 2023, Plaintiff filed this action against Defendants L'Abri Management, Inc. (L'Abri Management); Ronald A, Kolar, individually, and as CEO of Defendant; Edgl Has, Viviana Escamilla, and Does 1 to 10. This action arises out of alleged instances of harassment, discrimination, and hostile living conditions faced by Plaintiff during Plaintiff's tenancy at 2525

Carson Street, Unit No. 6, Lakewood, CA 90712, County of Los Angeles (Subject Property). (Complaint, ¶¶ 23-34.) The complaint asserts the following causes of action: (1) Breach of Warranty of Quiet Enjoyment, (2) Negligence, (3) Constructive Eviction, (4) Harassment, and (5) Intentional Infliction of Emotional Distress.

On February 18, 2025, the Court granted L'Abri Management's motions to compel responses to form interrogatories, set one, special interrogatories, set one, and requests for production of documents, set one (Order, 2/18/25).

On October 9, 2025, the Court granted L'Abri Management's motion to compel further responses to form interrogatories, set one, special interrogatories, set one, and requests for production of documents, set one (10/9/2025 Order).

This is a continuation. On February 26, 2026, this motion first came on for hearing. At the hearing, "[t]he Court confirm[ed] that Plaintiff's counsel, Gary Saunders, has been ineligible to practice law since 11/30/2025." (Order, 2/26/26.) Plaintiff appeared to request a continuance to obtain new counsel, and the Court continued the hearing to May 28, 2026. (Order, 2/26/26.)

On May 28, 2026, this motion came on for hearing again. The Court continued this motion to August 13, 2026 at defense counsel's request based on an issue with notice. (Order, 5/28/26.)

On August 13, 2026, this motion was called for hearing again. Plaintiff appeared and represented that he found an attorney to represent him and orally moved for a continuance so that he may oppose this motion. The Court granted Plaintiff's oral motion for a continuance and continued the hearing to today's date.

As of this date, there are no new filings by Plaintiff.

Legal Standard

If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions. (Code Civ. Proc., §§ 2023.010, subd. (g); 2030.290, subd. (c); 2023.030; R.S. Creative, Inc. v. Creative

Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Superior Ct. (1986) 180 Cal.App.3d 701, 707.)

Under Code of Civil Procedure section 2023.030, subdivision (d), “[t]he court may impose a terminating sanction by one of the following orders:

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any part of the action, of that party.

(4) An order rendering a judgment by default against that party.”

“The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390, quoting Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

Discussion

Defendants move for terminating sanctions against Plaintiff. Specifically, Defendants argue that Plaintiff’s failure to comply with the 10/9/2025 Order and other violations of the Civil Discovery Act warrant an order of dismissal with prejudice in favor of Defendants.

This motion is unopposed. The Court notes that this motion

has been continued twice. On February 26, 2026, when this motion first came on for hearing, Plaintiff appeared and confirmed that Plaintiff's counsel, Gary Saunders, has been ineligible to practice law since November 30, 2025. (Order, 2/26/26.) The Court continued the motion to permit Plaintiff to retain new counsel. (Order, 2/26/26.) On May 28, 2026, when this motion came on for a second time, the Court continued the hearing again based on defense counsel's representation that timely notice of the prior continuance was only provided to Plaintiff's counsel and not plaintiff. (Order, 5/28/26.) The notice included a representation that Plaintiff was seeking new counsel and was to comply with all outstanding orders and discovery at least 30 days prior to the hearing. (Order, 5/28/26.) The Court then continued the hearing to today's date and instructed the parties "to apprise the Court of any relevant updates via declaration or briefing prior to the hearing." (Order, 5/28/26.)

There have been no new filings except a Notice of Non-Opposition filed by Defendants indicating that they have not received any opposition from Plaintiff as of August 4, 2026. The Court proceeds to rule on this motion.

Defendants recount the following: on February 8, 2024, Defendants served Plaintiff with initial written discovery. (Hoffman Decl., ¶ 3.) On February 18, 2025, the Court granted Defendant's motion to compel discovery responses to the subject discovery requests. (Order, 2/18/25.) On April 7, 2025, Plaintiff served untimely responses with objections to the subject requests, form interrogatories, set one, special interrogatories, set one, and requests for production, set one. (Hoffman Decl., ¶ 7.) The majority of the responses said "[d]iscovery is continuing" and the objections were in violation of the 2/28/25 Order. (Hoffman Decl., ¶ 7.) Defendants moved for further responses. (Hoffman Decl., ¶ 11.) Defendants did not receive any responses to their meet and confer efforts and Plaintiff only opposed the motions the day before, blaming the failure to respond earlier on lack of communication and administrative staff turnover. (Hoffman Decl., ¶¶ 7-11.) This is the same justification Plaintiff provided for their initial motions to compel. (Hoffman Decl., ¶ 11.)

During the October 9, 2025 hearing on the motions to compel further responses, "Wayne Quint appeared for counsel for record on behalf of Plaintiff. Mr. Quint informed the Court that counsel of record, Gary Saunders, was determined to be no longer eligible to practice law by the California State Bar. Mr. Quint stated that he would be working on the firm's cases." (Hoffman

Decl., ¶ 12.) The Court granted L'Abri Management's motions to compel further responses and ordered Plaintiff and his counsel to provide further responses pay sanctions in the amount of \$2,620.00 within 30 days of the 10/9/25 Order. (Hoffman Decl., ¶ 13.)

After Mr. Quint introduced himself to defense counsel via email, Mr. Quint did not respond to meet and confer efforts. (Hoffman Decl., ¶¶ 14-16.) Defendants emailed Mr. Quint, Mr. Saunders, firm staff, and their firm's general litigation email address on December 8, 2025, stating that the further responses and monetary sanctions are overdue and providing an extension. (Hoffman Decl., ¶ 16.) Defense counsel "received a message from Microsoft Outlook stating that the email could not be sent to Mr. Quint's email address, as it was inactive, or to Ms. Barreto's email address, as it did not exist." (Hoffman Decl., ¶ 17.) As of the date of this motion, Defendants have not received any communications from Plaintiff.

The Court finds that Defendants show Plaintiff engaged in repeated, willful violations of Court orders and the discovery process. The subject discovery has been pending for nearly two years, since April 30, 2024. Plaintiff responded with objections in violation of the 2/18/25 Order and failed to provide further responses in violation of the 10/9/25 Order. Willfulness is apparent through Plaintiff's counsel's failure to meet and confer and failure to comply with Court Orders, despite representing to the Court and opposing counsel that Plaintiff will comply. Despite claiming that Plaintiff's firm experienced staffing issues in the late oppositions to prior discovery motions, Plaintiff failed to request any extensions from Defendants nor appraise the Court or Defendants of any difficulties.

Outside of Plaintiff's counsel, Plaintiff has again failed to oppose this motion. It has been over six months since Plaintiff appeared in this Court, represented that he sought to retain new counsel, and was instructed to comply with the pending discovery orders. Plaintiff has since appeared before this Court and requested another continuance on the grounds that he has found counsel to represent him. Despite these assertions, Plaintiff has not supplied a written opposition or any filing regarding new representation. Moreover, the issuance of monetary sanctions has not influenced Plaintiff's participation in discovery, as Plaintiff has also not paid any monetary sanctions.

"If a plaintiff wishes to avail himself of the California

courts, he owes a duty to comply with its rules, such as the rules of discovery. To hold otherwise, would permit a litigant to disappear and not be obliged to comply with our discovery statutes." (Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 253.)

Defendants' motion for terminating sanctions is GRANTED.

This action is dismissed with prejudice.